

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Keyne Jean Villert	Team: Team # 3	CCRB Case #: 201405991	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Thursday, 06/12/2014 6:50 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/12/2015	Precinct: 75
Date/Time CV Reported Thu, 06/12/2014 6:56 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 06/17/2014 7:46 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Raymond Tomins	05336	902480	WARRSEC
2. DT3 William Schmidt	03322	929145	WARRSEC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Joseph Viggiano	06676	919824	WARRSEC
2. DT3 Michael Ragona	05697	916485	WARRSEC
3. DT3 Eric Meza	05566	925744	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . SGT Raymond Tomins	Abuse: Sgt. Raymond Tomins supervised the entry and search of § 87(2)(b) in Brooklyn.	A . Unsubstantiated
B . DT3 William Schmidt	Abuse: Det. William Schmidt entered and searched § 87(2)(b) in Brooklyn.	B . Unsubstantiated
C . DT3 William Schmidt	Force: Det. William Schmidt used physical force against § 87(2)(b) and § 87(2)(b)	C . Unsubstantiated
D . DT3 William Schmidt	Abuse: Det. William Schmidt threatened to arrest § 87(2)(b)	D . Unsubstantiated
E . DT3 William Schmidt	Discourtesy: Det. William Schmidt spoke rudely to § 87(2)(b)	E . Unsubstantiated

Case Summary

On June 12, 2014, at approximately 6:30 a.m., § 87(2)(b) was inside his apartment, located at § 87(2)(b) in Brooklyn, when he heard knocking on his door. § 87(2)(b) opened the door and faced at least two officers, identified via investigation as Det. William Schmidt and Sgt. Raymond Tomins from the Warrant Section. Det. Schmidt explained that the officers were searching for § 87(2)(b). § 87(2)(b) resides inside the apartment with § 87(2)(b) and § 87(2)(b). § 87(2)(b) is the brother of § 87(2)(b). Soon thereafter, Det. Schmidt and Sgt. Tomins entered the apartment and searched it (**Allegations A and B**). During the search, Det. Schmidt entered § 87(2)(b)'s bedroom and pointed his flashlight at her, at which point Det. Schmidt allegedly pressed the flashlight against her face, causing swelling there (**Allegation C**). At that point, § 87(2)(b) stood up from a couch and approached § 87(2)(b)'s bedroom. Det. Schmidt then allegedly pushed § 87(2)(b) back, causing him to fall against a nearby wall (**within Allegation C**). § 87(2)(b) allegedly sustained swelling to his head due to his fall. At some point, Det. Schmidt searched kitchen drawers (**within Allegation B**). At another point, Det. Schmidt allegedly threatened to arrest § 87(2)(b) (**Allegation D**), stated to him, "Shut the fuck up" (**Allegation E**), and again threatened to arrest him (**within Allegation D**).

§ 87(2)(g)

Mediation, Criminal, and Civil Histories

- This case was not eligible for mediation because § 87(2)(b) and § 87(2)(b) allegedly sustained injuries as a result of this incident.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
- As of March 24, 2015, approximately six months following the expiration of the filing deadline, each of § 87(2)(b) and § 87(2)(b) has not filed a Notice of Claim with the City of New York in regard to this incident (encl. K20).

Civilian and Officer CCRB Histories

- § 87(2)(b) and § 87(2)(b) have not previously filed a CCRB complaint (encl. A15-A17).
- There are no substantiated CCRB allegations against Det. Schmidt; however two entry and search of premise allegations have previously been pled against him and were closed as unsubstantiated. Det. Schmidt has been a member of the service for thirteen years (encl. A12).
- Sgt. Tomins has been a member of the service for twenty-two years. The CCRB has previously substantiated an entry and search allegation against him. Sgt. Tomins has also been listed as the subject officer of seven other entry and search allegations, each of

which was closed as exonerated, unsubstantiated, or complainant uncooperative. (encl. A13-A14).

- In CCRB case number 201206370, Sgt. Tomins was found to have improperly supervised an entry and search into a residence and the Board recommended that he receive Charges. The administrative and disciplinary proceeding for this case is still on-going.

Potential Issues

- Contact attempts to § 87(2)(b) and § 87(2)(b) via phone and mail, were unsuccessful.
- Det. Eric Meza and Det. Michael Ragona, both also from the Warrant Section, were not interviewed § 87(2)(g)
- On April 20, 2015, the undersigned investigator received from the Internal Affairs Bureau (IAB) a note, on a request for the parole warrant filed for § 87(2)(b) indicating that IAB was unable to provide a copy of the parole warrant filed for him and that any such copy would have been printable at the time of his arrest. (encl. O16). The note was also attached to an OCA print-out of the records related to docket number § 87(2)(b) which lists that a warrant was ordered for § 87(2)(b) on § 87(2)(b). The print-out lists that the subsequent court action was taken on § 87(2)(b) (encl. J7). It should be noted that a warrant may become unavailable once it is vacated.

Medical Records

- § 87(2)(b)'s records indicate that she arrived at § 87(2)(b) on § 87(2)(b) via ambulance, at which point she complained of pain and swelling to her right cheek. § 87(2)(b) explained that a police officer pushed a flashlight into her face. § 87(2)(a) PHL § 18(6)

Police Documents

- The Warrant Section Roll Call lists Sgt. Tomins, Det. Meza, Det. Ragona, Det. Schmidt, and Det. Joseph Viggiano as on-duty at the time of the incident (encl. I1-I5).
- The Warrant Investigative Data sheets indicate that, on June 2, 2014, Det. Schmidt was assigned to a parole warrant for § 87(2)(b) which was filed on § 87(2)(b), in relation to OCA number § 87(2)(b). The sheets also indicate that warrant number § 87(2)(b) filed for § 87(2)(b) was active as of June 5, 2014. Two June 5, 2014, entries indicate that Det. Schmidt conducted an OCA inquiry and a New York City Police Department Booking, Arraignment, and Disposition System database search for § 87(2)(b) which yielded multiple results. A June 16, 2014, entry indicates that § 87(2)(b) was a § 87(2)(b) and his address is listed as § 87(2)(b), in Brooklyn. Additionally, the sheets list a narrative of this incident in which Det. Schmidt states that § 87(2)(b)

Additional Evidence

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g)

CCRB – Confidential

let them in. § 87(2)(b) made no mention that he consented to a search of the incident location; however, he mentioned that Det. Schmidt searched kitchen drawers. (encl. C1-C8).

§ 87(2)(b) first stated that § 87(2)(b) informed the officers that they could search the apartment; however, she later stated that § 87(2)(b) instead only allowed the officers to enter. § 87(2)(b) corroborated that the officers asked her family about § 87(2)(b) § 87(2)(b). § 87(2)(b) added that the officers claimed to have either a parole or search warrant. (encl. E1-E5). § 87(2)(b) did not witness the entry and made no indication that she observed any officer search any drawer; however, she corroborated that the officers asked her family about § 87(2)(b) § 87(2)(b) (encl. D1-D6).

§ 87(2)(b) first stated that § 87(2)(b) informed the officers that they could search the apartment; however, she later stated that § 87(2)(b) instead only allowed the officers to enter. § 87(2)(b) indicated that she did not witness the search of any drawers, while also indicating that her observation of the search was limited.

Det. Schmidt stated that § 87(2)(b) listed the incident location as his address on a database, without specifying which one. Det. Schmidt denied having searched any drawers, and each of the additional officers interviewed denied having observed him do so. Officer statements indicate that § 87(2)(b) consented to the entry and search of the apartment by the officers. Officer statements also indicate that the incident location was listed as the residence of § 87(2)(b) § 87(2)(b) for whom a parole warrant was issued. (encl. F1-F6 and G1-G5).

Police documents and OCA records indicate that § 87(2)(b) had at least one active warrant for his arrest at the time of this incident, and that his address listed with the court system and § 87(2)(b) around the time of the incident was that of the incident location. Police documents also indicate that Det. Schmidt conducted an OCA database search just a few days before this incident. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

According to New York State Criminal Procedure Law § 120.80, officers may enter a premise in which they reasonably believe a defendant to be present. It adds that officers must give, or make reasonable effort to give, notice of their authority and purpose to the occupants of the premise. (encl. A1-A11).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

As such, it is recommended that **Allegations A and B** be closed as **unsubstantiated**.

Allegation C – Force: Det. William Schmidt used physical force against § 87(2)(b)

§ 87(2)(b) and § 87(2)(b)

Allegation D – Abuse of Authority: Det. William Schmidt threatened to arrest § 87(2)(b)

Allegation E – Discourtesy: Det. Williams Schmidt spoke rudely to § 87(2)(b)

§ 87(2)(b) indicated that he did not observe Det. Schmidt's interaction with § 87(2)(b) inside the bedroom. § 87(2)(b) alleged that § 87(2)(b) approached a room that was being searched by the officers, at which point an officer pushed § 87(2)(b) causing him to fall back. § 87(2)(b) added that § 87(2)(b)'s head made contact with a window during the fall. § 87(2)(b) did not see which officer pushed § 87(2)(b). § 87(2)(b) also alleged that Det. Schmidt threatened that he could be arrested if he failed to provide his identification. In his sworn statement, § 87(2)(b) further alleged that, when he was inside one of the bedrooms, Det. Schmidt stated to him, "Shut the fuck up," and mentioned that he could or would be "locked up." In his initial complaint to IAB, § 87(2)(b) did not make any threat of arrest or discourtesy allegations. (encl. C1-C8).

§ 87(2)(b) stated that she was asleep when the officers entered the apartment. § 87(2)(b) indicated that she eventually woke up and observed Det. Schmidt point a flashlight toward and in proximity of her face. § 87(2)(b) added that Det. Schmidt subsequently waved the flashlight and pressed it against her face, causing pain, redness, and bruising to her face. § 87(2)(b) stated that § 87(2)(b) later approached Det. Schmidt who then pushed him, causing § 87(2)(b) to stumble back. § 87(2)(b) did not remember whether Det. Schmidt made the aforementioned discourteous remark or threats of arrest at the time each of them is alleged. (encl. D1-D6).

§ 87(2)(b) indicated that he did not observe Det. Schmidt's interaction with § 87(2)(b) inside the bedroom. § 87(2)(b) explained that § 87(2)(b) then stood up from a couch and walked away from it, at which point Det. Schmidt pushed him, causing § 87(2)(b) to fall back onto the couch. § 87(2)(b) added that § 87(2)(b)'s head made contact with a nearby wall on the way down. § 87(2)(b) stated that she heard Det. Schmidt mention § 87(2)(b) getting locked up; however, she did not know the context of the conversation. § 87(2)(b) made no indication that she was present at the time Det. Schmidt allegedly spoke rudely or made any other potential threat of arrest to § 87(2)(b) (encl. E1-E5).

Det. Schmidt admitted to waving his flashlight in front of § 87(2)(b)'s face, to identify her, at which point she popped up on her bed. Det. Schmidt denied any contact between his flashlight and § 87(2)(b). Det. Schmidt denied the use of any force at the scene. Det. Schmidt denied having used profanity. Det. Schmidt denied having had any conversation about the possibility of § 87(2)(b) getting "locked up." (encl. F1-F6).

Sgt. Tomins denied having observed Det. Schmidt make physical contact with any civilian. Sgt. Tomins denied having heard Det. Schmidt use profanity. Sgt. Tomins denied having heard Det. Schmidt have any conversation about the possibility of § 87(2)(b) getting “locked up.” (encl. G1-G5).

Det. Viggiano indicated that he was not present for the initial entry, but instead arrived inside the apartment soon after the entry by his partners. Det. Viggiano denied having observed Det. Schmidt make physical contact with any civilian. Det. Viggiano denied having heard Det. Schmidt make a threat of arrest or say, “Shut the fuck up.” (encl. H1-H6).

§ 87(2)(a) PHL § 18(6)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

it is thus recommended that **Allegations C, D, and E** be closed as **unsubstantiated**.

Team: 3

Investigator:	_____	<u>Keyne Jean Villert</u>	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date